
Appeal Decision

Site visit made on 29 June 2026

by R Standfield BSc (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 22 September 2026

Appeal Ref: 6008601

Hazelhurst Farm, C2024 Stockton, Worcestershire WR6 6XG

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr & Mrs J Stanhope against the decision of Malvern Hills District Council.
 - The application Ref is M/25/01503/FUL.
 - The development proposed is change of use of work element of live/work unit to create additional living accommodation.
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Decision

1. The appeal is dismissed.

Preliminary Matter

2. The National Planning Policy Framework (the NPPF) was updated on 17 August 2026. Both of the main parties to this appeal have had the opportunity to comment in light of the revised document and such comments as were submitted have been taken into account accordingly.

Main Issue

3. The main issue is the effect of the proposed development on the existing and future availability of rural employment opportunities.

Reasons

4. The appeal site comprises a live / work unit sited within a farm complex in the open countryside of Worcestershire. The unit is one of two created from a former barn in line with planning consent 11/01399/FUL which utilised a planning condition to tie occupation of the work elements to their respective residential parts. Unit 1 has subsequently achieved consent to change the work component to holiday lets and the residential component is occupied independently as confirmed by a lawful development certificate.
5. Unit 2, the subject of this appeal, was intentionally constructed as a live / work unit and remains subject to the condition restricting occupation of the work element to that of the residential element. It is currently occupied as a single three bedroomed residential dwelling across two floors. The workspace comprises a separate ground floor space with WC facilities and remains unused. The farm complex comprises a further barn conversion and the original farmhouse in a rural setting.
6. The submitted evidence raises discussion regarding the enforceability and appropriateness of the condition attached to consent reference 11/01399/FUL.

This appeal does not include any explicit application for the removal or amendment of the condition.

7. The condition has achieved its purpose of retaining a rural workspace opportunity in line with the express planning consent that was applied for and granted. The lack of its use by the current occupiers and the potential for that to continue (noted as a fallback position by the appellants) does not preclude its future use as a workspace. Retention of the space for such a future opportunity could be enforced by means of an enforcement notice or breach of condition notice if required. The fact that the Council now use more comprehensive wording does not undermine the validity of the existing condition as it stands. Policy DM6 of the NPPF reiterates previously established requirements for the use of conditions and there is therefore no change in this respect. As such, the circumstances of the existing planning condition are not determinative in this appeal.
8. The South Worcestershire Development Plan Review (2026) (the Plan Review) contains strategic and detailed policies to ensure appropriate provision of employment land and retention of existing premises.
9. Policy SWDPR15 Part D specifically requires proposals for the residential conversion of rural employment buildings to be informed by a detailed marketing exercise. The accompanying text clarifies the important role of live / work units in supporting small and start-up businesses, particularly in the more rural parts of South Worcestershire.
10. It is unclear from the submitted evidence when the space was constructed and whether it has ever been marketed as a live / work unit prior to the unit's solely residential occupation. The appellants present that they have no use for the workspace in its intended form however this in itself does not justify the loss of the rural employment opportunity. The supporting evidence provides no analysis of the original justification for the live / work unit, whether the site remains a viable proposition, the extent of demand for such units in the wider area, the availability of alternative units or any marketing exercise as prescribed by the development plan.
11. In the absence of such information, it has not been demonstrated therefore that the loss of the live / work unit would not harm the availability of rural employment opportunities over the development plan period. As such, the proposal does not comply with Policy SWDPR 15 of the Plan Review which seeks to secure employment opportunities dispersed throughout the rural areas of the district to ensure sufficient variety to meet current and future needs.

Other Considerations

12. The potential for the building to be fully utilised in the short term by extending the residential accommodation across the workspace is afforded limited weight in this instance. The original application was for a live / work unit and the retention of the possibility of future employment use would enable full and effective occupation of the building to be realised. A solely residential use would have been contrary to the development plan policies in place at the time as is also the case now. In addition, within the context of the newly adopted Plan Review, any new live / work units must evidence the employment element as part of the planning application. As such, the circumstances in which the appeal site now finds itself would not be

replicated however this does not undermine the implemented planning permission or the need to provide for rural employment opportunities.

13. Given that the proposed development would not result in a new dwelling, in-principle matters relating to a new residential use, remoteness of the location and the need for an affordable housing contribution as raised by the Council are not determinative matters and there is no conflict with Plan Review Policies SWDPR 01, SWDPR 03, SWDPR 06 or SWDPR 19. Similarly, the provided appeal decision for The Turbles in Castlemorton (PINS Ref 6001649) focuses on in-principle matters of location and is not determinative in this instance.

Planning Balance

14. Further to the above conclusions, the proposed development would conflict with the development plan taken as a whole. Planning law requires that decisions should be made in accordance with the development plan unless material considerations indicate otherwise¹. The development plan policies are broadly consistent with those of the NPPF insofar as they relate to the principles of sustainable development, including provision for economic growth.
15. NPPF Policy S3 sets out a general presumption in favour of development under which Policy S5 provides for development outside of settlements. The proposed development could not proceed under Policy S5 1h or 1j, as there is no net addition of dwellings (to contribute towards unmet need) and by extension, neither Policies HO8 or HO11 would apply. However, Policy S5 1c allows for the reuse of existing buildings unless the benefits of doing so would be substantially outweighed by any adverse effects when assessed against the national decision-making policies within the NPPF. The benefit in this instance relates to making effective use of the site, which is afforded substantial weight in line with Policy L2.
16. Policies within Chapter 7 of the NPPF address the objective of building a strong, effective economy. In summary, Policy E2 requires substantial weight in favour of business growth and Policy E4 specifically supports the sustainable growth of businesses in rural areas. The loss of a modern, purpose-built employment unit that could support the rural economy in this location would be a very substantial adverse effect in this respect.
17. As such, the adverse effect would substantially outweigh the benefit of the proposed development. Therefore, the presumption in favour of development in Policy S3 is not applied.

Conclusion

18. The proposal conflicts with the development plan and the material considerations, including the NPPF, do not indicate that the appeal should be decided other than in accordance with it. As such, the appeal should be dismissed.

R Standfield

INSPECTOR

¹ Section 38(6) of the Planning and Compulsory Purchase Act 2024 and section 70(2) of the Town and Country Planning Act 1990